

discussion of *Fleitmann* in *Ross v. Bernhard*, 396 U. S. 531, 535-536 (1970).⁷ Whatever doubt may have existed should now be dispelled. The Seventh Amendment does apply to actions enforcing statutory rights, and requires a jury trial upon demand, if the statute creates legal rights and remedies, enforceable in an action for damages in the ordinary courts of law.

NLRB v. Jones & Laughlin Steel Corp., 301 U. S. 1 (1937), relied on by petitioner, lends no support to her statutory-rights argument. The Court there upheld the award of backpay without jury trial in an NLRB unfair labor practice proceeding, rejecting a Seventh Amendment claim on the ground that the case involved a "statutory proceeding" and "not a suit at common law or in the nature of such a suit." *Id.*, at 48. *Jones & Laughlin* merely stands for the proposition that the Seventh Amendment is generally inapplicable in administrative proceedings, where jury trials would be incompatible with the whole concept of administrative adjudication⁸ and would substantially interfere with the NLRB's role in the statutory scheme. *Katchen*

⁷ See also *Porter v. Warner Holding Co.*, 328 U. S. 395, 401-402 (1946) (Emergency Price Control Act); *Texas & Pacific R. Co. v. Rigsby*, 241 U. S. 33 (1916) (Safety Appliance Act). The Courts of Appeals have similarly rejected the notion that the Seventh Amendment has no application to causes of action created by statute. See, e. g., *International Brotherhood of Boilermakers v. Braswell*, 388 F. 2d 193, 197 (CA5), cert. denied, 391 U. S. 935 (1968); *Simmons v. Avisco, Local 713, Textile Workers*, 350 F. 2d 1012, 1018 (CA4 1965); *Arnstein v. Porter*, 154 F. 2d 464, 468 (CA2 1946), as well as the decision of the Seventh Circuit in this case, 467 F. 2d, at 1113-1116. See generally *Developments in the Law—Employment Discrimination and Title VII of the Civil Rights Act of 1964*, 84 Harv. L. Rev. 1109, 1266 (1971).

⁸ "[T]he concept of expertise on which the administrative agency rests is not consistent with the use by it of a jury as fact finder." L. Jaffe, *Judicial Control of Administrative Action* 90 (1965).